

Jamshed Ali Tyagi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 17 May 2023 · 2023:AHC:107626-DB · Writ - C No. 16589 of 2023 · **Writ disposed; apply to the competent authority within a week.**

HEADNOTE

A mandamus to the District Magistrate to inquire into alleged harassment by the licensee's Executive Engineer and to secure regular bills will not lie where the Electricity Act, 2003 and the Electricity Supply Code, 2005 are treated as a self-contained scheme with an efficacious remedy before the competent authority. The consumer must move that authority; if the application is filed within a week, it is to be decided expeditiously in accordance with law.

FACTUAL SUMMARY

Jamshed Ali Tyagi held connection No. 1341364000 of Paschimanchal Vidyut Vitran Nigam Ltd. After 4 November 2020 he received no regular bills and alleged harassment by the Executive Engineer. On 3 September 2021 he asked the District Magistrate, Muzaffar Nagar, to inquire and to secure regular billing. The Executive Engineer reported to the Magistrate on 25 February 2023 that the dispute was one of electricity theft. Tyagi then sought a writ commanding the Magistrate to decide that representation.

HOLDING-UNITS

INTERPLAY · EA2003

writ barred where the Act and Supply Code furnish a remedy

HOLDING

The Electricity Act, 2003 and the Electricity Supply Code, 2005 are self-contained and give the consumer an efficacious remedy before the competent authority. That remedy cannot be bypassed by a mandamus to the District Magistrate, who has no locus to grant the billing or theft relief sought. The petitioner may move the competent authority within a week, and the application is to be decided expeditiously in accordance with law. The writ was disposed of on that footing. ¶ 3-5

FLAG No section or clause number is stated. The order names only the Electricity Act, 2003 and the Electricity Supply Code, 2005, and characterises the dispute as electricity theft without identifying the assessing or appellate provision.

PRINCIPLE TAGS

self-contained-remedy-bars-mandamus-to-dm A writ commanding the District Magistrate, Muzaffar Nagar, to inquire into harassment by the Executive Engineer and to direct regular bills for connection No. 1341364000 was refused because the Act and the Supply Code already provide a remedy before the competent authority, which the consumer was left to invoke within a week. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN, AND WHETHER REGULAR BILLS AFTER 4 NOVEMBER 2020 WERE DUE FOR CONNECTION NO. 1341364000, INCLUDING THE HARASSMENT GRIEVANCE AGAINST THE EXECUTIVE ENGINEER.

Left to an application before the competent authority, to be decided in accordance with law. The Court did not examine the Executive Engineer's report of 25 February 2023. ¶ 4-5

